



File No.: EXP202105680

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 24/11/2021. The complaint is directed against the FEDERACIÓN DE BALONMANO DE CASTILLA LA MANCHA with NIF G45046455 (hereinafter, the respondent).

The complaint alleges that the respondent requests and processes health data of participants in its competitions, discriminating based on such data, as they link the use of masks during their competitions with the presentation of the corresponding COVID-19 vaccination certificate or the presentation of antigen test results.

It also points out that they do not inform about the data retention period and other aspects provided for in Article 13 of the GDPR and lack a Data Protection Officer.

It includes:

- A screenshot with the logo of the respondent, no date is visible, informing that “the new regulations on the use of masks in competitions have been voted on in Assembly,” “You can say goodbye to it as long as the players present their complete vaccination certificate in all categories - in the school category, it will not be necessary to present the vaccination schedule for the moment.”

Those who have not yet received the full vaccination schedule may compete without a mask as long as an antigen test is conducted 48 hours before the match and the test result is presented. For any questions regarding the regulations, you can contact the Federation via email.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of 5/12, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent on 23/12/2021, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The following was specifically requested:

“1.- The legal basis for the processing and, if applicable, the circumstances that lift the prohibition for processing special categories of data, according to Article 9 of the GDPR.

2.- The purpose of the processing.

3.- The appropriate safeguards implemented to protect the rights and freedoms of individuals.

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4.- The categories of interested parties (workers, clients, users, etc.) and the information provided to them regarding the processing of data.

5.- The Impact Assessment carried out or the reasons why it has not been carried out (to know the list of personal data processing activities that require an impact assessment, as well as any other information related to impact assessments, you can consult the tool “Gestiona EIPD” at <https://www.aepd.es/es/guias-y-herramientas/herramientas/gestiona-eipd>)

6.- The decision made regarding this complaint.

7.- Report on the causes that led to the incident that originated the complaint.

8.- Report on the measures adopted to prevent similar incidents from occurring, implementation dates, and controls carried out to verify their effectiveness.

9.- Any other information deemed relevant.”

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 23/12/2021 as noted in the acknowledgment of receipt in the file.

On 27/01/2022, a response letter was received in this Agency, indicating:

a) As the legal basis for the processing: “The processing of personal data referred to in the complaint is regulated by Regulation 2021/953 of the European Parliament and of the Council regarding a framework for the issuance, verification, and acceptance of interoperable COVID-19 vaccination, diagnostic test, and recovery certificates - EU digital COVID certificate - to facilitate free movement during the COVID-19 pandemic,” with “the information that must be contained in the certificate regarding vaccination, the result of a diagnostic test, or recovery from the disease of the interested party.” It agrees that these are health data included in Article 9.1 of the GDPR. It reproduces Recital 46 of the GDPR which refers to various circumstances that may enable the lawfulness of the processing, highlighting: “when it is necessary to protect an essential public interest based on European Union law or the law of the Member States, which must be proportional to the objective pursued,” and “Protection of vital interests of the data subject or another natural person,” “is justified, insofar as the situation experienced during these last two years has been exceptional, involving a high number of deaths, as well as multiple less visible side effects in the figures, caused by SARS-COV-2.” “This legitimizing basis is regulated by European Union law, as the data controller has simply processed data that is already regulated by Regulation (EU) 2021/953, a regulatory instrument that has direct effect in Spain.”

b) Regarding the purpose of the processing: it is “to implement the measures that this controller has at its disposal, in accordance with current regulations” “limited to ensuring compliance with the health and prevention measures required, both by European, national, and regional regulations. This vaccination certificate regulated by the regulations, and the data contained therein, will only be used to ensure the safe practice of sports, in accordance with the health and scientific tools available to date.”

It understands that this processing of personal data complies with the principles of effectiveness, necessity, and proportionality.

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c) As guarantees implemented for the protection of the rights and freedoms of individuals, it states that on 26/10/2021, it created the registry of processing activities - RAT - which is provided in document 2. The reference of the DPD is not included, with the processing "FEDERADOS" and that of "COVID 19 HEALTH CERTIFICATE" highlighted, in which it states:

“Description of the purpose and typification of the purpose: Protection of vital interests of the data subject or another natural person. In accordance with the legal basis that supports such personal data processing, the purpose will be limited to ensuring compliance with the health and preventive measures required by both European, national, or regional regulations. This vaccination certificate regulated by the regulations, and the data contained therein, will only be used to ensure the safe practice of sports in accordance with the health and scientific tools available to date.

“Retention period: The data will be retained for as long as necessary to fulfill the purpose for which it was collected and to determine any potential liabilities that may arise from that purpose and the processing of the data. However, in this regard, in accordance with what is established in Regulation (EU) 2021/953 itself, in its art. 17, such data will not be retained beyond the date of June 30, 2022, due to lack of application from that date.”

“Legal basis for lawfulness or legitimization: Art. 6.1 d) Protection of vital interests of the data subject or another natural person. In this processing, the vital interests to be protected are those of individuals practicing the sport of Handball, under the scope of action of the Federation, whose scope is limited to the Autonomous Community of Castilla La Mancha and only in reference to the practice of this sport by all federated individuals.”

“Type or category of personal data: Specially protected data: Health data,

d) Regarding the information provided to the data subjects about the processing, it does not indicate anything.

e) Regarding the DPIA, it considers that “it is not currently mandatory to carry out an impact assessment, without prejudice to the need to adopt other security measures.”

f) Regarding the decision made regarding the complaint, it states that “they have concluded that

processing activity,” due to the change in the epidemiological situation, as well as the emergence of variants, which “is leading the authorities to reconsider that this COVID passport has less effectiveness, which implies that the principles of effectiveness, necessity, and proportionality required for such processing are not met.”

It states that an external DPD was appointed to the entity on 26/01/2022.

It states that “it should be noted that the FEDERACIÓN DE BALONMANO DE CASTILLA LA MANCHA provided several options to practice this sport safely while complying with the protocols required at that time, with the only option not being to share the COVID CERTIFICATE, but as evidenced in the various attached documents, there were different avenues such as undergoing a PCR or antigen test 48 hours prior.”

g) Regarding the causes that have motivated the incident that gives rise to the complaint.

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It is stated that “the claim notified to this party originates from the decision made on 25/10/2021, by the Assembly of the FEDERATION OF HANDBALL OF CASTILLA LA MANCHA, recorded in the Minutes,” which is attached as DOCUMENT no. 4. “It was agreed in point no. 1, the decision to require the following conditions for the practice of said sport by federated individuals aged 14 and older: ‘...it is determined that from this date the issue of the mask will be as follows:’ ‘Children may play without a mask if they either present the COVID certificate (two complete doses or one dose if they have had the disease) or present a negative antigen test 48 hours before the match. If there is any member of the team (including the coaching staff) who does not present the aforementioned requirements, that team will have to wear a mask.’ ‘(Minors under 12 years old who are directly dependent on the JCCM do not have to comply with this rule)’ ‘Regarding this last statement, the FEDERATION OF HANDBALL OF CASTILLA LA MANCHA clarifies that the mentioned age was a typo recorded in the minutes, as the Responsible does not have authority over minors under 14 years old’ ‘school categories (up to 14 years old) are governed by the direct instructions of the Junta de Comunidades de Castilla La Mancha.’ ‘To the Clubs belonging to the Federation, on the 29th of the same month, a clarifying note dated 4/11/2021 was communicated, stating “the ways to play” “without a mask, uploading the COVID certificate to the Federation's website,” or “without a mask, performing a PCR with a negative result 48 hours before the match – it will be certified as explained above),” and “with a mask if any of the two previous requirements are not met.” Document 6 provides an informative note dated 4/11/2021 to the teams indicating that the process was carried out via the Federation's email, sending “a photograph of the test and a certificate that the test has returned negative,” and it further states that one can also play without a mask, “by uploading the COVID certificate to the Federation's website.”

- It also provides “safe play protocol without a mask – season 21/22” “insert vaccination certificate for senior and youth category – completed dose” in document 7, indicating: “Each player/coach/youth or senior delegate must enter the following link ***URL.1” “You will have to provide the club code. It is found in the intranet of each team and all players who have a valid registration with that club will be able to upload the certificate without any problem.” It continues with the fields for DNI-NIE passport, date of birth, click to access. Next, “select and save the vaccination certificate.”

“The FEDERATION OF HANDBALL OF CASTILLA LA MANCHA implemented these options in order to comply with the provisions established in Royal Decree-Law 30/2021, of 23/12, which adopts urgent measures for prevention and containment to address the health crisis caused by COVID-19, specifically what is established in its art. 6.2, which establishes the obligation to use masks in closed public spaces and venues. Closed spaces and venues where this sport is always held.”

h) Regarding the measures adopted and controls carried out to verify their effectiveness, it notes the dates of the activity treatment registration, the designation of the DPD, and the performance of EIPD analysis.

THIRD: On 24/02/2022, in accordance with article 65 of the LOPDGDD, the claim presented by the claimant was admitted for processing.

FOURTH: On 26/10/2022, the director of the AEPD agreed:

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"Initiate sanctioning procedure against the respondent for the alleged infringement of the GDPR in the following articles:

- 9, in accordance with Article 83.5.a) of the GDPR and for the purposes of prescription in Article 72.1.e) of the LOPDGDD.

- 13, in accordance with Article 83.5.a) of the GDPR and for the purposes of prescription in Article 72.1.h) of the LOPDGDD.

"For the purposes provided in Article 64.2 b) of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), the sanction that may correspond would be:

- 10,000 euros for an infringement of Article 9 of the GDPR.

- 7,000 euros for an infringement of Article 13 of the GDPR."

FIFTH: The initiation agreement was notified to the representative of the respondent, with no allegations received.

SIXTH: On 12/06/2023, a resolution proposal was issued with the following text:

"That the Director of the Spanish Agency for Data Protection sanctions FEDERACIÓN DE BALONMANO DE CASTILLA LA MANCHA, with NIF G45046455, for the infringement of the GDPR, articles:

- 9 of the GDPR, in accordance with Article 83.5.a) of the GDPR, and for the purposes of prescription classified as very serious in Article 72.1.e) of the LOPDGDD, with an administrative fine of 10,000 euros.

- 13 of the GDPR, in accordance with Article 83.5.b) of the GDPR, and for the purposes of prescription classified as very serious in Article 72.1.h) of the LOPDGDD, with an administrative fine of 7,000 euros."

Notified on 12/06/2023, accepted on the same day.

On 26/06/2023, the respondent made allegations, indicating that the file would be expired in accordance with what is stated in Article 21 of the LPACAP, mentioning the obligation of the Administration to issue the resolution and inform regardless of its initiation form, admitting that the initiation of the sanctioning procedure took place on 27/10/2022 "although the resolution proposal took place on 12/06/2023."

Subsidiarily, it requests that no sanction be imposed on the grounds that the infringements would be time-barred.

SIXTH: The following facts are declared proven

PROVEN FACTS

1) The complainant filed a complaint against the respondent on 24/11/2021 because for the practice of the sport in the competition in the region of Castilla La Mancha, it is required that they upload to the website of the respondent the vaccination certificate against COVID with the complete schedule, or a certificate of having recovered from the disease, or a negative antigen test result 48 hours before the sporting event.

2) On 23/12/2021, the complaint was forwarded to the respondent, who received the notification on the same day, responding to the AEPD on 27/01/2022. In its response, among other statements, it indicates that due to the evolution of the epidemiological situation and the emergence of variants or efficacy, it has stopped processing data related to COVID to allow participation in competitions.

3) The Assembly of the FEDERACIÓN DE BALONMANO DE CASTILLA LA MANCHA, on 25/10/2021, decided to require federated individuals aged 14 and older, as well as coaches and delegates (all team members) for the practice of this sport in competition, the possibility of playing without a mask (always in enclosed spaces, not outdoors) only for those who present the COVID certificate (two complete schedules or one schedule if they have had the disease) or present a negative antigen test 48 hours before the match.

This information was communicated to the Clubs belonging to the Federation on 29/10/2021, with a clarifying note on 4/11/2021, indicating that the process was carried out via the Federation's email, sending "a photograph of the test and a certificate that the test has yielded a negative result," subsequently stating that they can also play without a mask, "by uploading the COVID certificate to the Federation's page."

4) The respondent provided "safe play protocol without a mask - season 21/22" "insert vaccination certificate senior and youth category - completed schedule" in document 7, indicating that by entering its page ***URL.2 where each athlete identifies and authenticates their data, they access the personal area and select and upload the vaccination certificate or the antigen test in this case before each match as a deadline, the Friday before 19:00 hours.

5) As the legal basis for the processing, the respondent indicated Regulation 2021/953 of the European Parliament and of the Council regarding a framework for the issuance, verification, and acceptance of interoperable COVID-19 vaccination, diagnostic test, and recovery certificates - EU digital COVID certificate - to facilitate free movement during the COVID-19 pandemic, commonly known as "COVID passport," or "EU digital COVID certificate." It adds Article 9.2.g) of the GDPR: "the processing is necessary for reasons of essential public interest, based on Union or Member State law, which must be proportional to the objective pursued, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject"; and Article 9.2.c): "the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not capable, physically or legally, of giving consent."

6) The respondent, on 26/10/2021, created the record of processing activities - RAT. "COVID 19 HEALTH CERTIFICATE" in which it highlights:

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"Description of the purpose and classification of the purpose: Protection of vital interests of the data subject or another natural person. In accordance with the legal basis that supports this processing of personal data, the purpose will be limited to ensuring compliance with the health and preventive measures required by both European and national or regional regulations. This vaccination certificate regulated by the regulations, and the data contained therein, will only be used to ensure the safe practice of the sport in accordance with the health and scientific tools available to date.

"Retention period: The data will be retained for as long as necessary to fulfill the purpose for which it was collected and to determine any potential liabilities that may arise from that purpose and the processing of the data. However, in this regard, according to what is established in Regulation (EU) 2021/953, in its Article 17, such data will not be retained beyond the date of June 30, 2022, due to lack of application from that date."

"Legal basis for lawfulness or legitimacy: Article 6.1 d) Protection of vital interests of the data subject or another natural person. In this processing, the vital interests to be protected are those of individuals participating in the sport of Handball, under the jurisdiction of the Federation, whose scope is limited to the Autonomous Community of Castilla La Mancha and only in reference to the practice of this sport by all federated individuals."

"Type or category of personal data: Specially protected data: Health data,

7) Information was requested from the respondent regarding the data provided to the federated athletes of their Federation in the collection of data related to COVID-19, without any response related to that aspect being provided.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 4 of the GDPR defines:

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"For the purposes of this Regulation, the following definitions shall apply:

1) personal data: any information relating to an identified or identifiable natural person ("the data subject"); an identifiable natural person is considered to be any person whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person;

2) processing: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, alignment, combination, restriction, erasure, or destruction;

15) health data: personal data related to the physical or mental health of a natural person, including the provision of health care services, which reveal information about their health status;"

The processing of personal data in situations of health emergencies remains subject to the regulations on personal data protection (GDPR and LOPDGDD), and therefore all its principles, contained in Article 5 of the GDPR, apply, including the principle of processing personal data lawfully, fairly, and transparently, the limitation of purpose, the principle of data retention limitation, and, of course, it is important to emphasize the principle of data minimization.

Furthermore, it must be taken into account that the specific purpose related to competition and health to preserve the health of athletes is distinct from what may be the processing activity aimed at obtaining a federative license, from which different categories of data arise, different risks to the rights and freedoms of the affected individuals, and specific rights derived from the exercise of rights concerning transparency and information contained in Articles 12 and 13 of the GDPR.

In the situation of the health crisis caused by COVID-19, the respondent adopts measures aimed at preventing new COVID-19 infections, under its instructions.

Athletes belonging to the respondent Federation have various options to upload data to the respondent's website for the purposes decided by it. The collection, storage, and use of that data imply that the respondent is processing personal data of the athletes, health data for which there should, in principle, be a lawful basis for processing and one of the grounds that enables the specific processing of this health data.

III

The GDPR establishes a very broad concept of health data and grants it a specific regime, corresponding to the so-called "special categories of data" referred to in Article 9 of the regulatory text.

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Article 9 of the GDPR states:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data

aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.”

In Article 9.2 of the GDPR, it is specified, however, that: “Paragraph 1 shall not apply when one of the following circumstances applies:” which encompasses from Article 9.2.a) to 9.2.j) and will be examined in the following section.

Thus, such processing requires both a legal basis under Article 6 of the GDPR and compliance with one of the conditions of Article 9.2 of the GDPR. Data controllers must be aware of the need to meet both requirements to process these special categories of personal data.

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

The membership of individuals in the Federation presupposes, in its normal regime, that their data may be processed for the purpose of their associative relationship, with the aim of promoting and extending ordinary sports activities, a purpose that originally defines the processing of such data.

Additionally, in the case presented of reconciling competitive sports practice with health during a pandemic, and attempting to contain the spread of the infection among the...

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Participants, the respondent adds the legal basis for processing under vital interest as per Article 6.1(d) of the GDPR, “the processing is necessary to protect vital interests of the data subject or another natural person.”

Recital (46) of the GDPR already acknowledges that, in exceptional situations, such as an epidemic, the legal basis for processing may be multiple, based both on public interest and on the vital interest of the data subject or another natural person.

(46) The processing of personal data must also be considered lawful when it is necessary to protect an essential interest for the life of the data subject or that of another natural person. In principle, personal data should only be processed on the basis of the vital interest of another natural person when the processing cannot be manifestly based on a different legal basis. Certain types of processing may respond to both significant public interest reasons and the vital interests of the data subject, such as when the processing is necessary for humanitarian purposes, including the control of epidemics and their spread, or in situations of humanitarian emergency, especially in cases of natural or man-made disasters.

Article 6.1(d) of the GDPR considers not only that the vital interest is a sufficient legal basis for processing to protect the “data subject,” in this case, the athletes competing against each other, but also that this legal basis can be used to protect the vital interests “of another natural person,” which by extension implies that they can be both unidentified or identifiable persons, as well as unnamed, in

terms of holding an interest worthy of being safeguarded.

Furthermore, it does not follow, as stated in Article 6.3 of the GDPR, that the necessity for the legal basis of processing due to vital interest must be established by Union law or the applicable laws of the Member States to the data controller, as would be the case if the legal basis were compliance with a mission in the public interest.

Analyzing this legal basis, it is considered that it would cover the processing arising from the pandemic situation within the specific framework of the competition.

As an element to consider in the processing carried out, it must also be assessed whether the respondent exceeds the following threshold that entails the prohibition of processing health data of these federated athletes. That is, unless one of the limited and enumerated circumstances set forth in point 2 applies, the processing of health data will not be lawful.

IV

From the following articles included in Article 9.2 of the GDPR, which are cited and may substantiate a potential legality of the processing of the data from the certificates required in competitions for the athletes, those that, according to the respondent, would be applicable to the specific case will be analyzed:

“a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except where Union law or the law of the Member States provides that the prohibition referred to in paragraph 1 may not be lifted by the data subject;

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c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;

[...]”

g) the processing is necessary for reasons of an essential public interest, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

[...]”

i) the processing is necessary for reasons of public interest in the field of public health, such as protection against serious cross-border health threats, or to ensure high levels of quality and safety of healthcare and of medicines or medical products, based on Union law or the law of the Member States that establishes adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy.”

The respondent states that the following would be applicable:

a)

In the RAT it only mentions “Art. 6.1 d) Protection of vital interests of the data subject or another natural person. In this processing, the vital interests to be protected are those of individuals participating in the sport of Handball, and only in reference to the practice of this sport by all federated individuals.” However, the cited provision is not one that allows this type of data processing.

b)

In its statements, it encompasses it within the framework of Regulation 2021/953 (EU digital COVID certificate) and adds g) of Article 9.2 of the GDPR “the processing is necessary for reasons of an essential public interest, based on Union law or the law of the Member States, which must be proportional to the objective pursued, respect in essence the right to data protection, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;” Regarding the first, the documentation known as the COVID passport, or EU digital COVID certificate (derived from Regulation 2021/953 cited by the respondent) involves holding a document that certifies having completed the vaccination schedule, a diagnostic test for active infection -PDIA- or

antigen tests, and recovery from the infection diagnosed with SARS-Cov.2, regarding a specific time period, originally aims to facilitate the free movement of persons within the territory of the EU. It is about the public health service issuing a certificate in cases of vaccination or recovery from the disease, and, in other cases, through the tests performed, giving validity to those certificates in the manner provided for and for the specific purposes for which said Regulation was created.

Although the COVID certificate was initially approved with the aim of guaranteeing the fundamental right to free movement of citizens in the European Union, it has been subject to

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subsequent use for other purposes in the generality of the Member States and, in particular in Spain, as one of the measures adopted by health authorities to prevent the spread of infections in various establishments, through its display.

In light of the adoption by various Member States of unilateral initiatives to issue COVID-19 certificates that could imply restrictions on the right to free movement and consequently hinder the functioning of the internal market, the European Council took the initiative to develop a common approach, as well as to urgently advance work on interoperable and non-discriminatory digital certificates related to COVID-19. As a result of this initiative, a proposal for a regulation was developed concerning a framework for the issuance, verification, and acceptance of interoperable COVID-19 certificates for vaccination, diagnostic testing, and recovery in order to facilitate free movement during the pandemic. The legal basis for the proposal was Article 21 of the Treaty on the Functioning of the European Union, which recognizes and guarantees the right to free movement within the Union. The guarantees for free movement for public health reasons must meet the criteria of necessity and proportionality. The entities that can access the certificate are limited to the competent authorities of the destination Member State and to cross-border operators of passenger transport services, airlines, and shipping companies that are obliged to cooperate with such authorities.

Regulation 2021/953 relates to the possibility for Member States to limit the fundamental right to free movement for public health reasons and culminates the coordinated approach to restricting the free movement of persons in response to the pandemic within the EU. Its recital 48 states:

“The Regulation (EU) 2016/679 of the European Parliament and of the Council applies to the processing of personal data carried out in the application of this Regulation. This Regulation establishes the legal basis for the processing of personal data within the meaning of Article 6(1)(c) and Article 9(2)(g) of Regulation (EU) 2016/679, necessary for the issuance and verification of the interoperable certificates established in this Regulation. It does not regulate the processing of personal data related to vaccination documentation, diagnostic testing, or recovery for other purposes, such as pharmacovigilance or the maintenance of personal medical records. Member States may process personal data for other purposes if the legal basis for their processing for other purposes, including the corresponding retention periods, is established in national law, which must comply with Union law on data protection and the principles of effectiveness, necessity, and proportionality, and must include specific provisions that clearly determine the scope and extent of the processing, the specific purpose in question, the categories of entities that may verify the certificate, as well as the relevant safeguards to prevent discrimination and abuse, taking into account the risks to the rights and freedoms of the data subjects. When the certificate is used for non-medical purposes, the personal data accessed during the verification process must not be retained, as provided for in this Regulation.”

Thus, the main objective of the Regulation is identified in its Article 1: “to establish a framework for the issuance, verification, and acceptance of COVID-19 certificates to facilitate the free movement of their holders during the pandemic and to contribute to the gradual lifting of the restrictions imposed by the Member States.” This purpose is not exhausted in facilitating freedom of movement in the strict sense, as these documents may be

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required for related purposes, as occurred, especially in some sectorial regulations issued by Health Councils of Autonomous Communities that regulated based on the situation of various establishments, or sectors such as specific prevention measures, the necessary presentation of this document to access said establishments depending on the epidemiological situation. The rulings that analyze its justification have considered, according to its justification, that the request for this digital certificate or COVID passport was motivated, and in other cases not, but in any case it comes from a norm of a health authority and its ratification approved by the judicial authority until the powers on which it was based were declared unconstitutional, which does not occur in the case where it is a federative entity that, organizing a competition, establishes requirements based on a norm such as the Regulation that has its own purposes and cannot be transferred to the scope of the competition in which its federated members participate without any intervention from the health authority or a norm that supports it. In this case, the Regulation cited UE 2021/953 does not justify the implementation of the system requiring health data for federated athletes to participate in the competition without a mask. The defendant implements it *motu proprio*, without an applicable *ad hoc* norm for the federated sports sector in the development of competitions.

Regarding the added article 9.2.g) of the GDPR, the right of the Union or the Member States that foresee the necessity for those reasons of essential public interest is not mentioned, and which should, on the other hand, essentially respect the right to data protection and establish measures.

Furthermore, Order SND/344/2020, of 13/04, which establishes exceptional measures for the reinforcement of the National Health System and the containment of the health crisis caused by COVID-19, agrees both to make available to the health authority of each Autonomous Community all those centers, services, and health establishments of clinical diagnosis owned by private entities located therein, as well as the submission of the performance of diagnostic tests for the detection of COVID-19 to the guidelines, instructions, and criteria agreed upon for this purpose by the autonomous health authority.

The Second Foundation of the aforementioned Order determines: "Requirements for the performance of diagnostic tests for the detection of COVID-19.": The indication for the performance of diagnostic tests for the detection of COVID-19 must be prescribed by a healthcare professional in accordance with the guidelines, instructions, and criteria agreed upon for this purpose by the competent health authority."

"As indicated in the preamble of this norm, it aims to limit the performance of diagnostic tests for the detection of COVID-19 to those cases where there is a prior prescription by a healthcare professional and that comply with criteria established by the competent health authority, thus subjecting the regime for the performance of this type of tests to the prior existence of medical criteria that advise their performance."

Thus, it is considered that the defendant does not meet the requirement it claims as an exception to the processing of health data, being considered that it violates Article 9 of the GDPR.

V

On the other hand, it follows that the respondent considered in this case a specific purpose related to COVID-19 has not demonstrated that it provides information on the aspects that must be included in the data collection in this case, which would violate Article 13 of the GDPR, which states:

"1. When personal data relating to an individual is obtained from that individual, the data controller shall, at the time of obtaining the data, provide the individual with all the information specified below:
a) the identity and contact details of the controller and, where applicable, of the controller's representative;

- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any relevant additional information in accordance with paragraph 2.

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4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

The information regarding data collection is part of the content of the principle of transparency that empowers data subjects to hold controllers accountable in order to exercise control over their personal data.

The data collected is distinct from that which may have been previously processed, such as that related to the federative license, due to its different purpose and category, and there is a necessity for explicit information that allows individuals to exercise their rights.

Recital 39 of the GDPR is informative regarding the meaning and effect of the principle of transparency in the context of data processing:

“For natural persons, it must be completely clear that personal data concerning them is being collected, used, consulted, or otherwise processed, as well as the extent to which such data is or will be processed. The principle of transparency requires that all information and communication relating to the processing of such data be easily accessible and easy to understand, and that plain and clear language be used. This principle particularly refers to the information provided to data subjects about the identity of the data controller and the purposes of the processing, as well as additional information

to ensure fair and transparent processing with respect to the affected natural persons and their right to obtain confirmation and communication of the personal data concerning them that is being processed [...].”

In this case, the data was collected in the private area of the application managed by the Federation as part of the “safe play protocol without a mask - season 21/22,” the decision of which was approved by the Assembly. Although this tool could have informed about this collection, there is no explanation from the respondent regarding the establishment of the manner and procedure for informing about the data implemented in the aforementioned measure, thus evidencing the non-compliance with the aforementioned Article 13 of the GDPR.

VI

Regarding the allegation of the expiration of the procedure based on Article 21 of the LPCAP, which states:

1. “The Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their form of initiation.”

...

2. “The maximum period in which the express resolution must be notified shall be that established by the regulatory norm of the corresponding procedure. This period may not exceed six months unless a law establishes a longer one or it is provided for in European Union law.”

Article 64 of the LOPDGDD, paragraph two, final, regarding the form of initiation and duration of the procedure prescribes:

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“The procedure shall have a maximum duration of nine months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. Upon the expiration of this period, it shall expire, and consequently, the proceedings shall be archived.”

This circumstance is noted in the initiation agreement notified to the respondent.

Considering that the initiation agreement was issued on 26/10/2022, the maximum period provided for in the specific applicable norm has not yet elapsed, therefore it is not appropriate to accept such expiration.

VII

In accordance with the available evidence, it is considered that the facts presented could violate the provisions of Articles 9 and 13 of the GDPR, to the extent expressed in the previous Legal Grounds, which implies the commission of the infringements classified in Article 83, paragraph 5.a) and b) of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states: “Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22.”

In this regard, the LOPDGDD, in its Article 71 establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements.”

For the purposes of the limitation period, Article 72 of the LOPDGDD states:

“Very serious infringements.

- 1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein, and in particular, the following: [...]

e) The processing of personal data of the categories referred to in Article 9 of Regulation (EU) 2016/679, without any of the circumstances provided for in that provision and in Article 9 of this organic law being present.

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d) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law. (...)

Regarding the prescription of the infringement, considering that of Article 9 as very serious, a period of three years would apply for these purposes, as provided for in Article 72.1.e) of the GDPR.

The collection of data for the intended purpose begins in the 21/22 season, with a "safe game" protocol that is for that season, and the claim is dated 24/11/21. The Assembly decided on the measure on 25/10/2021, which was communicated to the clubs a few days later for their knowledge. In the response of the respondent to the communication, on 27/01/2022, it is stated that they ceased this type of processing. Having signed the initiation agreement on 26/10/2022 and with the acceptance of the notification on the same day, it is not considered that the infringement is prescribed due to the lapse of the established period.

Regarding the prescription of the infringement of Article 13, the omission to inform when carrying out the processing for the purpose of the protocol developed in "safe game," which involved the processing of health data, the infringement of such duty also entails a computation period of three years, so that from the communication to the clubs to the date of receipt of the initiation agreement, it is not considered that it is prescribed.

VIII

Sections d) and i) of Article 58.2 of the GDPR provide as follows:

"Each supervisory authority shall have all of the following corrective powers indicated below: (...)

"d) to order the controller or processor to bring the processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

"i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case;"

In this case, given the category of the data being collected and the risks to the rights and freedoms that are compromised as a result, and the broad collective affected, the administrative sanction procedure of imposing a fine is appropriate.

IX

The determination of the sanctions to be imposed in this case requires observing the provisions of Articles 83.1) and 2) of the GDPR, which respectively provide as follows:

"1. Each supervisory authority shall ensure that the imposition of administrative fines in accordance with this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and harm suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;

- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits gained or the losses avoided, directly or indirectly, through the infringement.”

Within this section, the LOPDGDD provides in its Article 76, titled: “Sanctions and corrective measures”:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

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b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

3. It will be possible, complementarily or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679.”

According to the transcribed provisions, for the purpose of determining the amounts of the fines to be imposed in this case typified in Article 83.5.a) of the GDPR, for which the respondent is held responsible for the infringement of Article 9 of the GDPR, the following factors are considered concurrent as aggravating circumstances that reveal a greater unlawfulness and/or culpability in the conduct of the respondent:

- Article 83.2.a) GDPR “nature, gravity and duration of the infringement, taking into account the nature, scope or purpose of the processing operation in question, as well as the number of affected parties and the level of damages suffered;”. The data was collected over a period, approximately from November 2021, also involving minors, and with the addition in the instruction that if any team member did not present the requested documentation, certificates, or evidence, the team would have to wear masks, which is a way to compel them to submit to the tests and have that data processed on each occasion, or to receive the vaccine.

With this factor, a fine of 10,000 euros is imposed.

For the infringement of Article 13 of the GDPR, the following factors are considered concurrent as aggravating circumstances that reveal a greater unlawfulness and/or culpability in the conduct of the respondent:

- Article 76.2.b) of the LOPDGDD, "The connection of the infringer's activity with the processing of personal data," being an associative entity composed of 4,895 federative licenses in the year 2021, according to the publication of the Ministry of Culture and Sport, State, "Statistics of Federated Sport 2021," which groups 57 federated clubs.

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For the violation of Article 13 of the GDPR, a fine of 7,000 euros is imposed.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on the FEDERATION OF HANDBALL OF CASTILLA LA MANCHA, with NIF G45046455, two administrative fines for the following violations of the GDPR:

- Article 9 of the GDPR, in accordance with Article 83.5.a) of the GDPR, and for the purposes of prescription classified as very serious under Article 72.1.e) of the LOPDGDD, in the amount of 10,000 euros.

- Article 13 of the GDPR, in accordance with Article 83.5.b) of the GDPR, and for the purposes of prescription classified as very serious under Article 72.1.h) of the LOPDGDD, in the amount of 7,000 euros.

SECOND: NOTIFY this resolution to the FEDERATION OF HANDBALL OF CASTILLA LA MANCHA, through its representative, Mr. B.B.B.

THIRD: Warn the sanctioned party that they must pay the imposed fine once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of 29/07, in relation to Article 62 of Law 58/2003, of 17/12, by depositing the amount, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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